

		Agreement with Plaintiff and were negligent in their representation. Plaintiff does not assert any other arguments, such as that the arbitration agreement is unconscionable or has been waived by Defendants. As a result, he fails to meet his burden to show that the agreement is unenforceable. Accordingly, based on the foregoing, the Court grants Defendants' motion to compel arbitration of Plaintiff's claims. This matter is hereby stayed pursuant to Code Civ. Proc., § 1281.4. The hearing on Plaintiff's motion to stay set for 11/20/24 is vacated. The Court sets a status conference on January 21, 2025 in Dept. N18. Defendants shall give notice.
13.	2023-1354879 Witthoeft vs. Lares	<i>The Court will first address the OSC re: dismissal for FTP. In the event of denial only, the tentative of 9/4/24 (appearing below) is operative.</i> Motion to Compel Further Responses to Form Interrogatories Motion to Compel Further Responses to Requests for Production The unopposed motion by Defendants California Automobile Insurance Company, erroneously sued as Mercury Insurance, and Patty Lares dba Lares Insurance (collectively, "Defendants") for an order compelling Plaintiff Karin Witthoeft ("Plaintiff") to provide further responses to Defendants' Form Interrogatories, Set One, and request for sanctions is granted in part and denied in part. Defendants' motion to compel further responses to Defendants' Request for Production, Set One and request for sanctions is denied. Defendants' motions are timely filed. (Code Civ. Proc., §§ 2030.300, subd. (c) and 2031.310, subd. (c); Harvey Decl., ¶ 5, Exhibit C.) Defendants' motion to compel further responses to form interrogatory numbers 50.1 and 50.3 is denied. Defendants did not show Defendants met and conferred with Plaintiff regarding these two interrogatories. (Code Civ. Proc., §§ 2030.300, subd. (b); Harvey Decl., ¶¶ 6-8, Exhibit D.)

		Plaintiff's response to interrogatory number 7.3 does not appear to be incomplete or evasive. Defendants' unopposed motion is denied as to this interrogatory. Defendants' motion to compel further responses to interrogatory numbers 6.1-6.7, 7.1, 7.2, 9.1-9.2, 11.1, 12.1-12.2, 12.4, 12.6-12.7, and 50.2 is granted. (Code Civ. Proc., § 2030.300, subd. (a); <i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255.) Plaintiff shall serve verified supplemental Code-compliant responses within 20 days. Defendants did not show good cause for request numbers 7, 8, 9, 11, 13, and 14. Although Plaintiff did not provide any response to request number 9, Defendants are not seeking a response based on Plaintiff's failure to respond. Defendants only seek a further response to the above listed requests. Accordingly, Defendants' unopposed motion is denied. (Code Civ. Proc., § 2031.310, subd. (b)(1); <i>Glenfed Develop. Corp. v. Superior Court (National Union Fire Ins. Co. of Pittsburgh, Pa.)</i> (1997) 53 Cal.App.4th 1113, 1117; <i>see, Kirkland v. Superior Court</i> (2002) 95 Cal.App.4th 92, 98.) No sanctions. Defendants shall give notice.
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